

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory District of Columbia

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:37:10 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Questions 2.5.2a and 2.5.2c)

Overall Target Completion Date: 02/03/2025

Action Step Number	Action Step Description	Target Completion Date
1	Lead Agency, Office of the State Superintendent of Education (OSSE), implementation was effective as of Oct. 1, 2024. OSSE will submit plan amendment and await OCC review and approval.	02/03/2025

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types in a timely manner. In addition, the Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has requested a waiver for the requirement to pay prospectively through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	OSSE receives OCC approval of request to temporarily waive the requirement to pay providers prospectively.	11/22/2024

2	OSSE works with District partners to assess the legality of making prospective payments (based on DC statute) and explores options for granting authority to make prospective payments.	09/30/2025
3	OSSE identifies operational and system implications and steps needed to implement proposed solutions.	01/31/2026
4	OSSE develops policies for issuing prospective payments, implements necessary system changes and trains providers on new processes to begin prospective payments.	08/01/2026

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i)
- The Lead Agency has until February 6, 2025, to submit general action steps and estimated timeline related to providing grants or contracts for direct services for infants and toddlers and for children with disabilities using Appendix I of the 2025-2027 CCDF Plan.

Overall Target Completion Date: 02/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	OSSE implemented grants for direct services through the Access to Quality Child Care for Children with Disabilities grant, effective Oct. 1, 2024. Grantees provide direct services in Wards 1, 2, 5, 4, 7, and 8, which include underserved areas and wards with the highest concentration of poverty in the District. OSSE will submit a plan amendment and await	02/01/2025

	OCC review and approval.	
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HEALTH AND SAFETY:CHILD DEVELOPMENT

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on child development for licensed centers, licensed family child care providers, or licensed-exempt in-home providers, as required by 98.44(b)(1)(iii). (Plan Question 5.4.1l)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to child development, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	OSSE will amend its child development facility licensing regulations to include required pre-service orientation or orientation training related to all domains of child development.	03/31/2025

PROGRAM INTEGRITY:FRAUD INVESTIGATION, PAYMENT RECOVERY, AND SANCTIONS

Reason(s) for non-compliance:

- The Lead Agency does not include the results of activities to impose sanctions on clients or providers in response to fraud, as required by 98.68(b)(2). (Plan Question 10.2.2e)

Overall Target Completion Date: 02/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	OSSE will submit a Plan amendment with the results of activities to impose sanctions on clients or providers in response to fraud.	02/01/2025

HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency standard for emergency preparedness and response planning does not include volunteer emergency preparedness training for licensed centers, licensed family child care providers, or license-exempt in-home providers, as required by 98.41(a)(1)(vii). (Plan Question 5.3.7vi)
- The Lead Agency does not require pre-service or orientation training on emergency preparedness and response planning for licensed centers, licensed family child care providers, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1g)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with a standard for emergency preparedness and response planning and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 06/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	OSSE will amend its child development facility licensing regulations to include volunteers in the requirement for training on all components of emergency preparedness and response planning.	03/31/2025
2	OSSE currently requires emergency preparedness and response planning pre-service training for all child development facility staff through our child care licensing regulations. OSSE will clarify in our professional development landscape that only the "Child Care Emergency Preparedness for DC Child Care Connections", which includes all required subcomponents of	03/31/2025

	emergency preparedness and response planning, will count towards meeting the established pre-service training requirement for emergency preparation and response planning.	
3	OSSE conducts an annual unannounced inspection for all licensed facilities for compliance with OSSE's licensing standards. Once the licensing regulations are finalized, OSSE will update its monitoring protocols to monitor on the full set of revised regulations, including compliance with a standard for emergency preparedness and response planning and with related pre-service or orientation training requirements.	06/30/2025

COMPREHENSIVE BACKGROUND CHECK:BACKGROUND CHECK PROCESSES

Reason(s) for non-compliance:

- The Lead Agency does not ensure background checks are completed within 45 days of the request, as required by 98.43(e)(1). (Plan Question 5.7.13a)

Overall Target Completion Date: 06/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	OSSE will undertake a systemic review of all background check processes to ensure efficiency and compliance with all federal requirements, including timeliness of completion.	02/01/2025
2	OSSE will implement necessary changes to comply with background check requirements.	04/30/2025

COMPREHENSIVE BACKGROUND CHECK:PRE-SERVICE CHECK REQUIREMENTS (PROVISIONAL HIRE)

Reason(s) for non-compliance:

- The Lead Agency does not require a qualifying result from an FBI criminal background check or an in-state criminal background check with fingerprints before a prospective staff member begins work, as required by 98.43(d)(4). (Plan Questions 5.7.12a and 5.7.12b)

Overall Target Completion Date: 03/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	OSSE will amend its child development facility licensing regulations to clarify that when a provider has submitted a request for a prospective staff member's criminal background check, the prospective staff member may begin to work for the Facility, provided the results of the Federal Bureau of Investigation (FBI) fingerprint check or a fingerprint check of the state criminal repository in the prospective staff member's state of residence, have been returned satisfactorily and that the prospective staff member is supervised at all times by an individual who, within the five (5) year period before the date of the Facility's request, received a qualifying background check result. Additionally, the updated licensing regulations will note that OSSE shall provide the results of the criminal background check to the Facility and to the current or prospective staff member, in a written statement that indicates whether the current or prospective staff member is eligible or ineligible for employment, without revealing any disqualifying information regarding the individual.	03/31/2025

HEALTH AND SAFETY:PREVENTION AND CONTROL OF INFECTIOUS DISEASES

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on prevention and control of infectious diseases (including immunizations) for licensed centers, licensed family child care providers, or license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1a)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers for compliance with pre-service or orientation training requirements related to the prevention and control of infectious diseases (including immunizations), as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 03/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	OSSE has implemented pre-service and orientation training for caregivers, teachers and directors on the health and safety topics listed at § 98.41(a)(1)(i) through (xi), including the ☐ prevention and control of infectious diseases, including immunization ☐ through its child care licensing regulations (5A DCMR § 176.1). (Ongoing)	01/02/2025
2	OSSE has implemented pre-service and orientation training for licensed exempt caregivers on the health and safety topics listed at § 98.41(a)(1)(i) through (xi), including the ☐ prevention and control of infectious diseases, including immunization ☐ through its in-home caregiver policy. (Ongoing)	01/02/2025
3	OSSE will amend its child development facility licensing regulations to clarify requirements for all children to be immunized and compliance with grace periods and religious and medical exemptions to immunization.	03/31/2025
4	OSSE will continue to partner with the District Department of Health to track immunization compliance. (Ongoing)	01/02/2025
5	OSSE will continue to ensure that children experiencing homelessness and children in foster care are provided a 60-day grace period for completion of immunization requirements, with	01/02/2025

	support from child development facilities. (Ongoing)	
6	OSSE will continue to coordinate with the Departments of Human Services and Health and child development facilities to provide referrals and support to help families of children receiving services during a grace period comply with immunization and other health and safety requirements. (Ongoing)	01/02/2025